



Procedure No: EXP202304093 (PS/00296/2023)

RESOLUTION OF SANCTIONING PROCEDURE

From the actions carried out by the Spanish Agency for Data Protection against A.A.A. with NIF: ***NIF.1.- GLOBAL TELECOMUNICACIONES INTERRECARGAS, S.L. (hereinafter, "the respondent"), by virtue of a complaint filed by B.B.B. (hereinafter, "the complainant"), for the alleged violation of data protection regulations: Regulation (EU) 2016/679 of the European Parliament and of the Council, of 27/04/16, concerning the Protection of Natural Persons with regard to the Processing of Personal Data and the Free Movement of such Data (GDPR), Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD), and Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI), and based on the following:

BACKGROUND

FIRST: On 27/02/23, a document was received by this Agency, submitted by the complainant, stating that on 23/02/23 they received an SMS advertisement on their phone ***TELEFONO.1 from a company that included its URL for them to connect and view its offers. The phone from which the SMS was received was ***TELEFONO.2 and the message received was:

"YOUR Phone 14 for €51.9/month FOR MORE INFO

<https://www.phonerenting.es/renting/>

Along with the complaint document, a Certificate from the Robinson List Service was submitted, according to which they have been registered since 09/08/2009.

SECOND: On 28/03/23, in accordance with the provisions of Article 65.4 of the LOPDGDD, this Agency forwarded the complaint to GLOBAL TELECOMUNICACIONES INTERRECARGAS, S.L. for analysis and to report back within one month regarding the contents of the complaint document.

The forwarding was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP). According to the certificate from the Electronic Notifications and Electronic Address Service, the request document sent to the respondent on 28/03/23 via the electronic notifications service "NOTIFIC@" was automatically rejected on 08/04/23.

Although the notification was validly carried out by electronic means, with the procedure being considered completed in accordance with the provisions of Article 41.5 of the LPACAP, an informational copy was sent by postal mail to the address indicated in the Central Commercial Registry as the registered office: ***DIRECCION.1, resulting in, according to the Certificate issued by the Postal Service: "absent" on 10/05/23 and "returned to sender as unknown" on 11/05/23.

THIRD: On 28/03/23, an agreement to admit the processing of the complaint was issued by the Director of the Spanish Agency for Data Protection.

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submitted, in accordance with Article 65 of the LPDGDD, upon appreciating possible rational indications of a violation of the regulations within the competencies of the Spanish Agency for Data Protection.

FOURTH: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the investigative powers granted to the control authorities under Article 58.1 of the GDPR and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following:

- In the Privacy Policy of the website <https://www.phonerenting.es>, the holder is listed as:

GLOBAL TELECOMUNICACIONES INTERRECARGAS SL.

B-84864545, Calle José de Churiguera 2 El Ejido 04700 (Almería).

- The holder of this domain is A.A.A. and is registered as the partner and sole administrator of the

entity GLOBAL TELECOMUNICACIONES INTERRECARGAS, S.L.

- According to the Central Commercial Registry, the registered address of the entity GLOBAL TELECOMUNICACIONES INTERRECARGAS SL. B-84864545, is ***ADDRESS.1,

FIFTH: On 14/07/23, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the respondent for the alleged infringement of Article 21 of the LSSI, with an initial sanction of 1,000 euros (one thousand euros). The transfer, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), according to a certificate from the Electronic Notification and Electronic Address Service, the initiation document, made available to the respondent on 17/07/23, through the electronic notification service "NOTIFIC@", was accepted on the same day 17/07/23.

SIXTH: The aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP and after the period granted for the submission of allegations had elapsed, it has been confirmed that no allegations have been received from the respondent. Article 64.2.f) of the LPACAP - a provision of which the respondent was informed in the initiation agreement - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the responsibility attributed, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts that specified the accusation, the infringement attributed to the respondent, and the sanction that could be imposed. Therefore, taking into consideration that the respondent has not submitted allegations to the initiation agreement of the file and in accordance with the provisions established in Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution.

PROVEN FACTS.

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In view of all that has been acted upon, the Spanish Agency for Data Protection considers the following proven facts in this procedure:

First: The complainant, on 23/02/23, received SMS advertising on his mobile phone from a company where its URL was included for him to connect to it and see its offers:

"YOUR Phone 14 for 51.9€/month FOR MORE INFO

<https://www.phonerenting.es/renting/>

Along with the complaint document, a Certificate from the Robinson List Service is presented, according to which he has been registered since 09/08/2009.

LEGAL GROUNDS

I.-

Competence.

The Director of the Spanish Agency for Data Protection is competent to resolve this Sanctioning Procedure, in accordance with the provisions established in Article 43.1, second paragraph, of the LSSI.

II.-

Summary of the events that occurred:

According to the complainant, on 23/02/23, he received a promotional SMS on his mobile phone from the URL <https://www.phonerenting.es/renting/>, whose holder, as this Agency has been able to verify, is the respondent, partner and sole administrator of the entity GLOBAL TELECOMUNICACIONES INTERRECARGAS, S.L., which appears as responsible in the Privacy Policy of the website in question.

III.-

Classification of the committed infringement

The fact that the respondent sent a promotional SMS to the complainant without him having previously requested or authorized it constitutes a violation of the provisions established in Article 21 of the LSSI, as it states the following:

- “1. The sending of advertising or promotional communications by email or other equivalent electronic communication means that have not been previously requested or expressly authorized by the recipients is prohibited.
2. The provisions of the previous section shall not apply when there is a prior contractual relationship, provided that the provider has lawfully obtained the contact details of the recipient and uses them to send commercial communications regarding products or services of its own company that are similar to those initially contracted with the client.

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In any case, the provider must offer the recipient the possibility to oppose the processing of their data for promotional purposes through a simple and free procedure, both at the time of data collection and in each of the commercial communications sent to them.

When the communications have been sent by email, this means must necessarily consist of the inclusion of an email address or another valid electronic address where this right can be exercised, and the sending of communications that do not include such an address is prohibited.

IV.-

Sanction

The aforementioned infringement of Article 21 of the LSSI is classified as minor in Article 38.4.d) of said regulation, which qualifies as such, “The sending of commercial communications by email or another equivalent electronic means when the requirements established in Article 21 are not met and does not constitute a serious infringement.”

According to these criteria, it is deemed appropriate to impose a sanction of 1,000 euros (one thousand euros) for the infringement of Article 21 of the LSSI, for sending a promotional SMS to the complainant without having previously expressed their consent.

Therefore, in accordance with the applicable legislation, the Director of the Spanish Agency for Data Protection,

RESOLVES:

FIRST:

TO IMPOSE

on A.A.A. with NIF: ***NIF.1.- GLOBAL TELECOMUNICACIONES INTERRECARGAS, S.L., for the infringement of Article 21 of the LSSI, a sanction of 1,000 euros (one thousand euros).

SECOND: TO NOTIFY this resolution to Mr. A.A.A.

THIRD: To warn the sanctioned party that they must pay the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No. IBAN:

ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A.

Otherwise, collection will proceed in the executive period. Upon receipt of the notification and once it is enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties. Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative process may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal.

If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

Mar España Martí

Director of the Spanish Agency for Data Protection

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